

26PSCV00867 26PSCV00867

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-07-28

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Case Number: 26PSCV00867 Hearing Date: July 28, 2026 Dept: G

Defendant Howard Tse-Ho Hsu's Demurrer with
Motion to Strike to Plaintiff City of Diamond Bar's Complaint

Respondent:

Plaintiff City of Diamond Bar

TENTATIVE

RULING

Defendant

Howard Tse-Ho Hsu's Demurrer with Motion to Strike to Plaintiff City of Diamond
Bar's Complaint is CONTINUED.

BACKGROUND

This

is a nuisance abatement action. Defendants

Howard Tse-Ho Hsu and Cecil Tse Hsu (collectively, the Hsus) allegedly own residential
real property within the jurisdiction of plaintiff City of Diamond Bar (the
City). Defendants Homebridge Financial

Services, Inc.; Mortgage Electronic Registration Systems, Inc.; and Interfaith
Federal Credit Union each allegedly have a recorded interest in the real
property. On September 27, 2023, the

City allegedly inspected the real property from the public right-of-way and
observed a deteriorated wall, outdoor storage of items and debris, a vehicle
encroaching into the public right-of-way, a vehicle parked on an unpaved
surface, poor landscaping, and a commercial vehicle; all of which allegedly
constitute violations of the City's Municipal Code. That same day, the City issued a Courtesy

Notice to Correct Violation. On October

4, 2023, the City allegedly re-inspected the real property and observed that the

Hsus failed to correct the violations. On

October 5, 2023, the City allegedly informed the Hsus that they needed a zoning clearance to properly address the violations.

On March 18, 2024, the City allegedly re-inspected the real property and

observed that the Hsus failed to complete the abatement work authorized by the

City despite the Hsus obtaining a zoning clearance. On April 9, 2024, the City allegedly issued a

Civil Citation citing the storage of debris and trash storage receptacles in

public view, maintenance of a deteriorated wall, and failure to maintain

landscaping in proper condition; directing the Hsus to correct the violations;

and ordering the Hsus to pay a fine. On

May 9, 2024; June 26, 2024; and September 30, 2024, the City allegedly issued additional

Civil Citations citing the same violations, directing the Hsus to correct the

violations, and ordering the Hsus to pay a fine. Between June 2024 and March 2026, the City

allegedly re-inspected the real property nine times and observed the same

violations.

On

March 10, 2026, the City filed the Complaint, alleging causes of action for (1)

maintaining a public nuisance, (2) municipal code violations, and (3) declaratory

and injunctive relief.

On

April 13, 2026, Howard Tse-Ho Hsu filed this demurrer with motion to strike. On May 6, 2026, the City filed the opposition, and there is no reply. On May 19, 2026,

the court continued the demurrer with motion to strike to allow the parties to properly meet and confer.

This

case is set for a case management conference, an order to show cause re:

failure to file proof of service, and a continued hearing on the demurrer and

motion to strike on July 28, 2026.

ANALYSIS

Howard

Tse-Ho Hsu generally demurs to the Complaint based on the failure to state

sufficient facts and uncertainty and moves to strike the requests for

injunctive and declaratory relief. For

the following reasons, the court CONTINUES the demurrer and motion to strike.

Legal Standard

Pursuant

to Code of Civil Procedure sections 430.41 and 435.5, prior to filing a demurrer or motion to strike, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., §§ 430.41, subd. (a); 435.5, subd. (a).) They further provide that the demurring or moving party “shall identify all of the specific causes of action that it believes are subject to [demurrer or being stricken] and identify with legal support the basis of the deficiencies.” (Code Civ. Proc., §§ 430.41, subd. (a)(1); 435.5, subd. (a)(1).)

While

Code of Civil Procedure sections 430.41 and 435.5 make clear failing to meet and confer is not grounds to overrule a demurrer, courts “are not required to ignore defects in the meet and confer process” and if the court determines “no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” (*Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355 & fn. 3.)

Discussion

The

court previously found that “Howard Tse-Ho Hsu’s counsel failed to provide a declaration that attests that they complied with the meet and confer requirement.” (5/19/2026 Order Re: Court’s Final Ruling, p. 2, citing Dem. w/ MTS.) The court ordered that Howard Tse-Ho Hsu’s counsel meet and confer with the City’s counsel and to file a supplemental meet and confer declaration.

(See 5/19/2026 Order Re: Court's Final Ruling, p. 2.) However, Howard Tse-Ho Hsu did not provide a supplemental meet and confer declaration.

Therefore,

the court CONTINUES the demurrer with motion to strike and ORDERS Howard Tse-Ho Hsu's counsel to MEET AND CONFER with the City's counsel by telephone, video conference, or in person and FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer and motion to strike.

CONCLUSION

For

these reasons, the demurrer with is CONTINUED to a date to be determined at the hearing in Department G (Pomona).

Counsel

for defendant Howard Tse-Ho Hsu is ORDERED to MEET AND CONFER with plaintiff City of Diamond Bar's counsel regarding the present demurrer with motion to strike and to FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer and motion to strike.